

PLJ 2021 Lahore (Note) 78
[Bahawalpur Bench Bahawalpur]

Present: JAWAD HASSAN, J.

Syed MUHAMMAD AREEB ABDUL KHAFID SHAH BUKHARI--Petitioner

versus

SUB-REGISTRAR, BAHAWALPUR, etc.--Respondents

W.P. No. 343 of 2019/BWP, heard on 16.4.2019.

Punjab Rented Premises Act, 2009--

---Ss. 5, 6 & 17--Constitution of Pakistan, 1973, Art. 199--Tenancy agreements--Application for registration of tenancy agreements--Rejected--Proof of ownership--Scope of jurisdiction--Direction to--It is evident from language of Section 17 that Rent Registrar is only required to maintain a register of tenancy agreement and its particulars, with any other agreement in respect of rented premises and he cannot go beyond scope of his jurisdiction--Registered tenancy agreement or its certified copy is considered a proof of relationship of landlord and tenant--Petition allowed.

[Para 8] B & C

Punjab Rented Premises Act, 2009--

---S. 17(1)--Rent registrar--Government shall appoint a Rent Registrar in a district or an area as it may deem necessary. [Para 7]

A

Petitioner in person.

Mr. Jam Muhammad Afzal Gasoorah, Assistant Advocate-General for Respondents.

Date of hearing: 16.4.2019.

JUDGMENT

Through this Constitutional Petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”), the Petitioner has made the following prayer:

“In these circumstances and for the foregoing facts and reasons, it is respectfully prayed that by issuing writ of certiorari, the impugned order dated 27.02.2018 passed by the Sub-Registrar, Bahawalpur City/Respondent No. 1 may please be set aside for declaring the same to be illegal, unlawful, void ab initio and passed without having lawful authority/jurisdiction and consequently by issuing a writ of mandamus, the Deputy District Officer (Registration), Bahawalpur/the Rent Registrar, Bahawalpur/Respondent No. 2 may graciously be directed to enter the particulars of the aforesaid tenancy agreements so presented by the Petitioner qua landlord before him as provided under Section 05 of the Punjab Rented Premises Act 2009 into his relevant ‘register to be maintained by him under Section 17 ibid and after affixing official seal thereon and retaining the copies thereof, the original tenancy-agreements please be returned to the Petitioner accordingly.”

2. The facts tersely revealed from the petition are that the Petitioner entered into a tenancy agreement (the “Agreement”) with 51 tenants under Section 6 of the Punjab Rented Premises Act, 2009 (the “Act”). To fulfill the requirement of Section 5 of the Act, the Petitioner and the tenants submitted an application for registration of the agreements to the Respondent No. 1 in September 2017 but he refused to entertain and register the same,

therefore, the Petitioner filed W.P. No. 10475 of 2017 before this Court which was disposed of vide order dated 13.12.2017, in the following manner:

“Respondent No. 4 undertakes that in compliance of the judgment of this Court as well as notification dated 26.01.2012 issued by the Government of the Punjab, Home Department, he is performing his duties and if the petitioner approaches him, he will act in accordance with law.

2. In view of the statement of Respondent No. 4, this petition stands disposed of”

Therefore the Petitioner filed an application under Sections 5 and 17 of the Act for entering the particulars of the 51 tenancy agreements in the relevant Register and affixing the official seal on the tenancy agreement in accordance with law. Accordingly, vide order dated 27.02.2018 (the “Impugned Order”) passed by the Respondent No. 1 the registration of the Agreements was refused. Hence, this petition.

3. The learned counsel for the-Petitioner inter alia submitted that the Impugned Order is against the law and facts; that the reasons for refusing the application of the Petitioner for registration of the agreement are unjust and against the spirit of law as the agreement was submitted for the registration under the Act which does not burden payment of stamp duty to the landlord and tenant for the registration of tenancy; that the Respondent No. 1 was not authorized to refuse the Petitioner imposing certain conditions rather was bound to register the agreement under Section 5 of the Act; that the only meant for registration of agreements before the Respondent is proof of relationship of landlord and tenant; that the Impugned Order has been passed against Article 4 of the Constitution. Learned counsel relied upon the judgment passed by this Court cited as “*Hascol Petroleum Limited v. Rent Registrar/Urban Sub-Registrar, Sialkot and another*” (PLD 2018 713).

4. On the other hand, learned Law Officer objected to the maintainability of this petition and vehemently controverted the arguments advanced by the learned counsel for the Petitioner. He prayed for dismissal of the petition on the ground that the Petitioner has not produced any proof of ownership or the proof of being landlord of demises premises and due to non-production of proof of ownership the agreements were rightly refused to be registered.

5. I have heard the detailed arguments from both sides and perused the record minutely.

6. In the instant petition, the Petitioner has sought a judicial review by this Court of the Impugned Order dated 27.02.2018 passed by the Respondent, under Article 199 of the Constitution. The main grievance of the Petitioner is that while passing the Impugned Order, the Respondent went beyond his jurisdiction and even has failed to exercise his authority within the prescribed parameters of law.

7. The Rent Registrar is not defined under the Act. The Rent Registrar is, however, appointed under Section 17 of the Act which reads as under:

“17. Rent Registrar.--(1) The Government shall appoint a Rent Registrar in a district or an area as it may deem necessary.

(2) The Rent Registrar shall maintain a register to enter particulars of a tenancy agreement, agreement to sell or any other agreement in respect of rented premises.”
(emphasis added)

8. It is evident from the language of Section 17 that the Rent Registrar is only required to maintain a register of tenancy agreement and its particulars, with any other agreement in respect of the rented premises and he cannot go beyond the scope of his

jurisdiction. This Court in case cited as “*Hascol Petroleum Limited v. Rent Registrar/Urban Sub-Registrar, Sialkot and another*” (PLD 2018 713), has already dealt with the same issue, wherein it has been held that under Sections 5 and 17 of the Act the Rent Registrar is only required to maintain a register of tenancy agreement and its particulars, with any other agreement in respect of the rented premises. Under Sections 5(3) and (6) of the Act, the Rent Registrar is required to: (i) enter the particulars of the tenancy and any agreement executed between the landlord, and the tenant in that register; (ii) affix his official seal on the tenancy agreement; (iii) retain its copy; and (iv) return the original tenancy agreement to the landlord. The registered tenancy agreement or its certified copy is considered a proof of the relationship of the landlord and the tenant.

9. In view of above, the instant petition being at par with that of the above referred case law is hereby allowed and the impugned order dated 27.02.2018 is set aside; consequently, the case is remanded to the Rent Registrar, Bahawalpur, with the direction to the Respondent to decide the case of the Petitioner afresh under the applicable law.

(Y.A.) Petition allowed